

TENTATIVE RULING FOR APRIL 29, 2026

Department R12 - Judge Kory Mathewson

Trung N. Tran v. CKB Vienna, LLC – CIVRS2400970

Motion: Motion to Reopen Discovery

Movant: Plaintiff Trung N. Tran

Respondent: Defendants CKB Vienna LLC, Min Stephen Cho, and Bastiaan Dixon

RULING: Motion to Reopen Discovery is MOOT. Sanctions are GRANTED in the amount of \$300.00, due within 60 days.

Defendants - to provide Order(s) and give Notice.

On December 5, 2025, Plaintiff filed his motion to reopen discovery. The motion is moot because the initial trial date is set for November 16, 2026, and therefore discovery has not even closed yet. (Code of Civil Procedure section 2024.020, subd. (a) [“Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.”].) Discovery cannot be re-opened when it has not yet closed. Plaintiff’s motion fails to explain why the motion is proper. In Reply, Plaintiff contends the motion is appropriate because Defendants have failed to produce required evidence. The court deems the motion as moot.

Defendants CKB, Cho, and Vandenberg oppose and seek \$3,400 in sanctions.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2024.050, subd. (c).)

The sanction request is excessive. Plaintiff’s motion carries no import at all. While opposing counsel did have an obligation to read the motion, a simple concise opposition was all that was really necessary notifying the court that the motion was pointless. Additionally, counsel’s rate is excessive in the San Bernardino legal market.

Nonetheless, the court grants the request for sanctions because the motion is without substantial justification, but in a reduced amount of \$300.00.

Dated: April 29, 2026

Judge Kory Mathewson